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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, September 14, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Aleksanyan vs. FCA US, LLC, 2023-01347934	MOTION FOR TERMINATING SANCTIONS Defendant, FCA US, LLC, moves for an order imposing terminating sanctions or issue, evidentiary, and monetary sanctions in the amount of \$1,500, against Plaintiffs, Khachatur Aleksanyan and Artur Aleksanyan and their attorneys of record, Tionna Carvalho and Tim Butler of Strategic Legal Practices, for Artur Aleksanyan’s willful failure to sit for his depositions and Plaintiff’s willful failure to provide verifications to supplemental written discovery requests as ordered by the Court on April 20, 2026. A court has broad discretion in selecting the appropriate penalty for a party’s refusal to obey a discovery order, and the trial court’s determination must be upheld absent an abuse of discretion. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604 (“Lopez”).) “Despite this broad discretion, . . . the terminating sanction is a drastic penalty and should be used sparingly. [Citation.]” (Ibid.) “A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party’s fundamental right to a trial, thus implicating due process rights. [Citations.]” (Ibid.) The discovery statutes “evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) “Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective [citations].” (Lopez, supra, 246 Cal.App.4th at pp. 604-605.) Here, the evidence submitted shows that Defendant served Plaintiffs with Supplemental Requests for Production and Interrogatories, and that Plaintiffs provided unverified responses, forcing Defendant to file

	motions to compel the Supplemental Interrogatories and Requests for Production, and that Plaintiffs failed to provide availability for dates for their depositions after being served with deposition notices, forcing Defendant to file a motion to compel Plaintiffs' depositions. (Declaration of James N. Werner ("Werner Decl."), ¶¶ 5-6.) An Informal Discovery Conference was held on these discovery motions before the Honorable Andre De La Cruz, and on April 20, 2026, the Court ordered the verifications to the supplemental request to be provided by April 24, 2026, and Plaintiffs' depositions to be completed by May 5. (Id., ¶¶ 7-8, Ex. B.) Plaintiffs did not provide any verification for the Supplemental Interrogatories and Requests for Production by April 24, 2026, and on May 5, 2026, Plaintiff Khachatur Aleksanyan appeared four hours late but his deposition was completed, and Plaintiff Artur Aleksanyan did not appear for his deposition and a certificate of non-appearance was taken. (Werner Decl., ¶¶ 10, 13, Ex. F.) Plaintiff's counsel claims that there was a "mis-scheduling within our firm system" and that due to a miscommunication, Plaintiff Khachatur Aleksanyan did not show up for his deposition on time. (Pan Decl., ¶ 8.) There is no explanation for why Plaintiff Artur Aleksanyan did not show up for his deposition on May 5, 2026, although the parties had agreed on the date and time. (Ex. E to Werner Decl.; Pan Decl., ¶ 6) Plaintiff's counsel also claims they initiated meet and confer efforts following the filing of the instant motion. The evidence supporting this claim is an email dated August 26, 2026, although the motion was filed in May 2026. (Pan Decl., ¶¶ 10-11, Ex. 7.) Defendant's counsel denies receiving the email. (Reply Declaration of James N. Werner, ¶ 3.) Regardless, the fact remains that Plaintiff did not comply with this portion of the Court's order for the deposition of Plaintiff Artur Aleksanyan to be conducted by May 5, 2026. The Court notes that Plaintiffs' law firm has claimed miscommunication and staffing issues have led to numerous problems in this and other cases. Regardless, counsel must comply with orders of the Court, and the
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		Court must take the necessary steps to ensure its orders are complied with. The Court intends to impose at least monetary sanctions against Plaintiffs and/or their counsel. Counsel should be prepared to address the appropriate amount of monetary sanctions and the appropriate type of additional sanctions.
102	Chan vs. Blueray Aquatics LLC, 2025-01524694	MOTION TO APPEAR PRO HAC VICE – DENIED WITHOUT PREJUDICE The unopposed application of attorney David A. DuBois to appear pro hac vice on behalf of Defendant Blueray Aquatics, LLC is DENIED WITHOUT PREJUDICE. Moving Attorney met the requirements of California Rules of Court, rule 9.40 except that Moving Attorney did not: (1) state his residence pursuant to rule 9.40(d)(1), (2) establish proper service on the state Bar of California pursuant to rule 9.40(c)(1), and (3) state that he is not “[r]egularly engaged in substantial business, professional, or other activities in the State of California” pursuant to 9.40(a)(1), (a)(2), and (a)(3). The Court notes that Counsel need not provide his exact resident address but he must identify the state of his legal residence. Moving attorney to give notice.
103	Danze vs. Danze, 2025-01522118	DEMURRERS - SUSTAINED Defendants Marcelo Danze, Manuel Soto, and Alex Danze each filed a demurrer to the complaint filed by Plaintiff Kristina Danze. Each moving defendant demurs to all causes of action alleged against him. Plaintiff did not file opposition to any demurrer. The complaint contains six causes of action: (1) breach of fiduciary duty against Defendant Marcelo, (2) fraudulent misrepresentation against all moving Defendants, (3) unjust enrichment against all moving Defendants, (4) fraudulent misrepresentation against Defendant Marcelo, (5) an accounting against all moving

		Defendants, and (6) conspiracy against all moving Defendants. (ROA 2.) Plaintiff Kristina Danze did not oppose any of the three demurrers. Based on Plaintiff's non-opposition, the Court may "deem plaintiff[] to have abandoned the issues" or "claims" addressed in the Demurrers. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Defendants' arguments presented in the Demurrers. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue."]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].) The Demurrers will be SUSTAINED. As of this date, Plaintiff has not made any attempt to explain whether and how the complaint can be amended. The Court will determine whether to sustain the demurrers with or without leave to amend based on Plaintiff's response. Defendants to give notice.
104	Douraghi vs. Douraghi, 2020-01137161	MOTION TO BE RELIEVED AS COUNSEL – GRANTED Underwood Law Firm, P.C. moves to be relieved as counsel of record for Plaintiffs Iraj Douraghi and Abdol Amir Douraghi. The attorneys identified in the caption for Underwood Law Firm, P.C. are Elijah Underwood and Abel Edens (collectively, "Moving Counsel"). The unopposed Motion is GRANTED, as follows. Moving Counsel has utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the

		notice, declaration, proposed order, and service requirements of California Rules of Court, rule 3.1362. Moving Counsel also provides grounds for granting the motion under California Rules of Professional Conduct 1.16(a)(2), (b)(4), (b)(5), (b)(7), (b)(9), and (b)(10). (ROA 375, Judicial Council Form MC-052, Declaration in Support of Attorney's Motion to be Relieved as Counsel, ¶ 7.) Moving Counsel has presented a basis for permissive withdrawal under the California Rules of Professional Conduct. The motion to be relieved as counsel of record is GRANTED. The Court will sign the proposed order and delete the next scheduled hearing date set forth in paragraph 7(a)-(b) which is listed as "08/03/2026 at 8:30 a.m. in Dept N14" for "Jury Trial." The Court will also delete the trial date set forth in paragraph 9(b) which is listed as "08/03/2026 at 8:30 a.m. in Dept. N14." The Court will interlineate the trial date set forth in paragraph 9(b) as "11/30/26 at 8:30 a.m. in Department N14." The order relieving Moving Counsel as counsel of record for Plaintiff is effective upon counsel filing proof of service of a copy of the signed order, on the client and on all parties that have appeared in the case. (California Rules of Court, rule 3.1362(e).) Moving Counsel to give notice.
105	Gallagher Law Group v. Leadpin	OFF CALENDAR - WITHDRAWN

106	Lopez vs. Volkswagen Group of America, Inc., 2026-01556626	DEMURRER TO COMPLAINT – MOOTED BY FILING OF FIRST AMENDED COMPLAINT
107	Luther v. Zahedi	OFF CALENDAR
108	Mom CA Investco, LLC vs. 247 Hotels Beverage, LLC, 2023-01325570	OFF CALENDAR - WITHDRAWN
109	Munguia vs. BMW of North America, LLC, 2025-01453458	MOTION FOR TERMINATING SANCTIONS BMW of North America, LLC (“BMW”), request an order imposing terminating sanctions against Plaintiff Maribel Munguia Plaintiff and her counsel of record, Quill & Arrow LLP, pursuant to CCP§§ 2023.010(d), 2023.030(d), and 2025.450(d) for their willful failure to (1) appear for deposition and (2) make the Subject Vehicle available for inspection, in violation of this Court’s March 3, 2026 Order (ROA 75). In the alternative, BMW requests the Court impose issue sanctions, evidentiary sanctions, and monetary sanctions in the form of attorneys’ fees and costs incurred as a result of Plaintiff and her Counsel’s failure to comply with the Court’s order and their misuse of the discovery process. A court has broad discretion in selecting the appropriate penalty for a party’s refusal to obey a discovery order, and the trial court’s determination must be upheld absent an abuse of discretion. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604 (“Lopez”).) “Despite this broad discretion, . . . the terminating sanction is a drastic penalty and should be used sparingly. [Citation.]” (Ibid.) “A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party’s fundamental right to a trial, thus implicating due process rights. [Citations.]” (Ibid.) The discovery statutes “evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th

		967, 992.) “Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective [citations].” (Lopez, supra, 246 Cal.App.4th at pp. 604-605.) Following an IDC, on March 3, 2026 the Court granted BMW’s motions to compel and ordered: (1) Plaintiff’s deposition must proceed no later than March 17, 2026; and (2) the Vehicle Inspection must proceed by April 6, 2026. (Triplett Decl. ¶ 18; Ex. N [ROA 75].) Sanctions were awarded against Plaintiff and to BMW NA’s counsel in the amount of \$3,560. The Court also imposed sanctions on Quill in the amount of \$300 to pay to the Clerk of the Court. The sanctions to Defendant’s counsel and to the Court have been paid. It appears that Plaintiff’s deposition has still not been taken. The vehicle inspection has not taken place and cannot take place – the vehicle was totaled sometime around the time the Court issued its discovery orders. The Court intends to impose at least monetary sanctions against Plaintiffs and/or their counsel. Counsel should be prepared to address the appropriate amount of monetary sanctions and the appropriate type of additional sanctions.
110	National Funding, Inc. vs. Integrated Holdings, Inc., 2025-01529466	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION – GRANTED Plaintiff National Funding, Inc., moves for summary judgment or, in the alternative, summary adjudication against Defendant Lee Kareem (Kareem or Guarantor), as to the second cause of action for breach of guaranty, the only cause of action against this defendant. No opposition has been filed. Plaintiff filed the instant Complaint against Defendants Integrated Holdings, Inc. dba D&N Gage and Kareem. Default has been entered against co-defendant, Integrated Holdings, Inc. dba D&N Gage. (ROA 17.)

	Plaintiff contends that Kareem failed to satisfy his obligations under the applicable Guaranty wherein Kareem guaranteed repayment of amounts loaned to Defendant Integrated Holdings, Inc. Code of Civil Procedure section 437c(a)(1) states, in part: “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc. § 437c(a)(1).) Code of Civil Procedure section 437c(p)(1) provides that, “[f]or the purposes of motions for summary judgment and summary adjudication: (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or defense thereto.” Plaintiff’s initial burden of proof in moving for summary judgment does not include disproving any affirmative defense asserted by a defendant. (Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co. (2009) 170 Cal.App.4th 554, 564.) Upon a plaintiff meeting its burden of showing there is no defense to a cause of action by proving each element of the cause of action, “the burden shifts to the defendant ‘to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.’ [Citations.]” (Id. at pp. 564-565.) “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51
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	Cal.4th 811, 821.) “A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty. [Citation.]” (Gray1 CPB, LLC v. Kolokotronis (2011) 202 Cal.App.4th 480, 486.) On or about February 26, 2025, Defendant, Integrated Holdings, Inc. dba D&N Gage (Borrower) electronically executed and delivered to Plaintiff a Business Loan Agreement, whereby Borrower received an original loan in the principal amount of \$92,158.95 from Plaintiff/Lender. (Separate Statement of Undisputed Material Facts (“SSUMF”), ¶ 1.) The Loan Agreement provided for a total loan repayment obligation of \$127,178.92 to be paid by Borrower to Plaintiff via 44 consecutive weekly payments of \$2,890.43. (SSUMF, ¶ 2.) In further consideration for the loan and to ensure repayment, Kareem agreed to guarantee the indebtedness of Borrower by executing a personal guaranty. (SSUMF, ¶ 3, 4.) On or about July 25, 2025, Borrower and Guarantor electronically executed and entered into a modification of the Loan Agreement with Plaintiff (the “Modification Agreement”), whereby Plaintiff agreed to extend the term of the loan an additional eighteen (18) months and lower the repayment schedule to \$1,064.95 weekly payments in exchange for an extension fee of \$14,307.63 that would be added to the repayment obligation of the loan. (SSUMF, ¶ 5.) On or about August 18, 2025, Borrower failed to timely make its weekly payment, as required under the terms of the Loan Agreement as modified by the Modification Agreement. (SSUMF, ¶ 6.) Specifically, Borrower’s Loan Payment History shows that Borrower failed to make the \$1,064.95 weekly payment on August 18, 2025, August 25, 2025, and September 2, 2025, such that Plaintiff was unable to collect any Automatic Payment Plan payment on three consecutive dates, triggering an “Event of Default.” (Ex. 3 to Otero Declaration, Loan
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		Payment History.) Borrower has remained continuously in default. (Otero Decl., ¶ 7.) Upon Borrower's breach, Plaintiff elected to exercise its rights and remedies under the Loan Agreement and declare a breach, making the entire outstanding balance of \$104,671.47 due and payable. (SSUMF, ¶ 7.) Plaintiff has demanded payment from both Borrower and Kareem/Guarantor for the amount due under the Loan Agreement and Guaranty. (SSUMF, ¶ 8.) Despite Plaintiff's demand, Borrower and Kareem/Guarantor have both failed to pay the amounts due under the Loan Agreement and Guaranty. (SSUMF, ¶ 9.) Based on the foregoing, the Court finds there exists a valid written Guaranty between Plaintiff and Guarantor for Guarantor to fulfill the obligations and duties of Borrower under the Loan Agreement, and Plaintiff has performed its obligations under the Loan Agreement. By failing to make payments when due, Borrower has defaulted under the Loan Agreement, and by failing to pay the amounts due under the Loan Agreement upon demand, Guarantor has breached the Guaranty. Plaintiff has been damaged in the outstanding loan balance in the amount of \$104,671.47. The Court GRANTS summary judgment as to the second cause of action for breach of guaranty against Defendant and Guarantor Lee Kareem. Plaintiff's counsel shall prepare and submit a proposed Order and a proposed Judgment. Plaintiff to give notice.
111	NFS Capital, LLC vs. Alva Manufacturing, Inc., 2025-01495506	APPLICATION FOR WRIT OF POSSESSION – DENIED WITHOUT PREJUDICE Plaintiff seeks a Writ of possession after hearing for "The machining equipment as defined in detail in Attachment 4." It is unclear to the Court what specific equipment is subject to the requested writ. The documents attached to attachment 4 are invoices. One appears to be for a

		license, not equipment. One invoice appears to be for one piece of machinery plus multiple other items. Application is denied without prejudice. The property sought to be recovered must exist in some concrete or tangible form, capable of identification and seizure. (Lamus v. Engwicht (1919) 39 Cal.App. 523, 529.) Here, the twenty-four pages of invoices comprising attachment 4 to the application for writ does not render the property identifiable for the Court, the Sheriff, or Defendant. Court to give notice.
112	Nguyen v Le	OFF CALENDAR – REFERRED TO IDC
113	Robicheaux vs. Rowshan, 2022-01261647	MOTION FOR LEAVE TO FILE AMENDED CROSS-COMPLAINT – GRANTED The liberal policy of permitting amendments to pleadings virtually requires that this Court grant the motion. Whether the proposed amendments to the cross-complaint violate the doctrine of judicial estoppel is not properly addressed by the Court in ruling on this motion. The proposed third amended cross-complaint attached as exhibit 1 to the declaration of Jessie Gessin shall be filed within 5 court days of the date of this order.
114	Ronald W. Makarem, A Professional Corporation vs. Get Buzzed LLC, 2025-01531850	DEMURRERS – OVERRULED IN PART AND SUSTAINED IN PART WITH 20 DAYS LEAVE TO AMEND MOTION TO STRIKE – GRANTED IN PART WITH 20 DAYS LEAVE TO AMEND AND DENIED IN PART Ronald W. Makarem, APC sued Get Buzzed LLC dba Bee the Buzz Media (“Get Buzzed”), Brian Meikle, and Lisa Mullins for 1) Fraud & Deceit; 2) Breach of Contract; 3) Violation of Penal Code §496; 4) Conversion; 5) Negligence’ and 6) Violation of UCL, arising out of defendants’ failure to properly provide contracted-for marketing services. Plaintiffs’ first amended complaint (FAC) is the operative complaint. Defendant Meikle demurs to the entirety of the FAC. Get Buzzed and Mullins demur to the third through sixth causes of action, and move to strike portions of the FAC.

		<u>Uncertainty</u> “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. [Citations.] A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. [Citations] [¶] [U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend. [Citations.]” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 (internal quotation marks omitted).) Here, none of the causes of action in the FAC fails on the basis of uncertainty. The factual allegations are not so incomprehensible that Meikle cannot reasonably respond, as evidenced by the detailed arguments made by Meikle on the alternative grounds that the FAC fails to plead facts sufficient to constitute a cause of action. <u>First Cause of Action for Fraud & Deceit</u> To plead a fraud-based cause of action, the following elements must be alleged: (1) misrepresentation (false representation or concealment); (2) knowledge of falsity; (3) intent to deceive; (4) justifiable reliance; and (5) resulting damage. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638; Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951.) For causes of action for intentional and negligent misrepresentation, each element must be pled with specificity. (Lazar, supra, 12 Cal.4th at p. 645.) The particularity requirement necessitates pleading facts that show how, when, where, to whom, and by what means the representations were tendered. (Ibid.) The FAC sufficiently alleges the how, when, where, to whom and by what means the alleged representations by
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		Meikle were tendered. (See FAC ¶43.) The demurrer to the first cause of action is OVERRULED. <u>Second Cause of Action for Breach of Contract</u> Meikle demurs to the second cause of action for breach of contract. However, that cause of action is only alleged against Bee the Buzz. As there is no breach of contract cause of action alleged against Meikle, the demurrer to the second cause of action is OVERRULED. <u>Third Cause of Action for Penal Code § 496</u> Meikle and Mullins contend that Plaintiff has not pled facts sufficient to constitute a cause of action for violation of Penal Code §496. Penal Code §496(a) provides, in relevant part: “Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, [is subject to incarceration]” “Theft” includes defrauding any other person of money. (P.C. §496(a).) Penal Code §496(c) authorizes any person who has been injured by a violation of subdivision (a) to bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit and reasonable attorney’s fees. A violation of the statute requires some form of criminal intent beyond mere proof of nonperformance or actual falsity. (See <i>Siry Investment LP v. Farkenhondehpour</i> (2022) 13 Cal.5th 333, 361-362.) Here, the FAC sufficiently alleges that Meikle provided fabricated fact sheets, background checks and HIPAA releases to Plaintiff, emailed Plaintiff fabricated medical records, and as a result obtained or aided in withholding \$1.25 million from Plaintiff, knowing it had been obtained through theft. (FAC ¶¶13, 19 , 63-66.)
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	As to Mullins, the FAC alleges she “concealed, withheld, or added [sic] in concealing or withholding property from Plaintiff, specifically the \$1.25 million of Plaintiff’s funds, knowing the property to be stolen or so obtained.” (FAC ¶ 66.) Elsewhere in the FAC, there are detailed allegations that Mullins was an officer acting on behalf of Get Buzzed; and that she sent out fabricated medical reports to deceive Plaintiff and cover up Defendants’ failure to deliver leads as promised. (FAC ¶ 23.) The demurrer to the third cause of action is OVERRULED. <u>Fourth Cause of Action for Conversion</u> The elements of conversion are: “(1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” (Lee v. Hanley (2015) 61 Cal.4th 1225, 1240.) Money can be the subject of an action for conversion if a specific sum capable of identification is involved. (Weiss v. Marcus (1975) 51 Cal.App.3d 590, 599.) Here, Plaintiff has sufficiently alleged Defendants, through the use of fraudulent promises, obtained \$1.25 million of Plaintiff’s money. (FAC ¶ 24.) Defendants refused to return the money even after Plaintiff demanded they do so. (Ibid.) This is a discrete sum that was previously in the possession of Plaintiff, as opposed to a mere contractual right to payment, which would not support a conversion claim. (See Voris v. Lampert (2019) 7 Cal.5th 1141, 1151-1152; Farmers Ins. Exchange v. Zerlin (1997) 53 Cal.App.4th 445, 452.) As to Mullins, the FAC sufficiently alleges that she personally participated in the scheme and profited from the funds. (FAC ¶¶ 13, 23, 26.) Meikle contends this cause of action is barred by the three year statute of limitations set forth in Code of Civil Procedure section 338. However, the money is alleged to have been transferred to Defendants between April 16 and July 25, 2024. (FAC ¶ 24.) Thus, the statute of
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		limitations would have run no earlier than April 16, 2027. This action was filed on December 8, 2025. The demurrer to the fourth cause of action is OVERRULED. <u>Fifth Cause of Action for Negligence</u> The economic loss doctrine “bars recovery in negligence for pure economic losses when such claims would disrupt the parties’ private ordering, render contracts less reliable as a means of organizing commercial relationships, and stifle the development of contract law.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 915.) Purely economic losses are those which did not arise from a physical injury to person or property. (Southern California Gas Leak Cases (2019) 7 Cal.5th 391, 398.) Here, Plaintiff alleges a contractual relationship between itself and Get Buzzed. (FAC ¶ 54.) The fifth cause of action for negligence alleges that “Defendants breached the standard of care owed to Plaintiff, and did not perform the marketing campaign with care, skill, reasonable expedience, and faithfulness.” (FAC ¶ 85.) This is nothing more than a breach of the duties owed by way of the contractual relationship between Plaintiff and Get Buzzed. Further, the damages sought are entirely economic: the \$1.25 million paid under the contract and lost legal fees from cases that did not materialize. (FAC ¶¶ 86-88.) Plaintiff asserts that both contract and tort claims may be pled, but Plaintiff has not pled anything sounding in negligence that is outside the scope of the contractual relationship. While Mullins and Meikle are not alleged to be in privity of contract with Plaintiff, courts in California are loathe to impose duties of care on non-contracting parties to guard against “purely economic losses.” (Southern California Gas Leak Cases at p. 400.)
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	Under the ordinary duty analysis of <i>Biakanja v. Irving</i> (1958) 49 Cal.2d 647 and <i>J'Aire Corp. v. Gregory</i> (1979) 24 Cal.3d 799, Plaintiff has not presented any compelling policy reasons to impose a duty upon Mullins or Meikle here. The demurrers as to the fifth cause of action for negligence are SUSTAINED with 20 days leave to amend. <u>Sixth Cause of Action for Unfair Competition</u> Defendants contend that the cause of action for unfair competition is derivative of the other causes of action alleged in the FAC and, because those causes of action fail, so too must this cause of action. As the Court has overruled the demurrers to all but one cause of action, the demurrer to the sixth cause of action is also OVERRULED. contracting parties to guard against “purely economic losses.” (Southern California Gas Leak Cases at p. 400.) <u>Motion to Strike</u> Defendants request that the Court strike Paragraph 6(b) of the Prayer for Relief, which seeks “disgorgement of Defendants’ unlawful and ill-gotten profits, according to proof” under the Sixth Cause of Action for unfair competition. In opposition, Plaintiff concedes that this wording is imprecise. Because the FAC is ambiguous, in that it seeks “disgorgement of Defendants’ unlawful and ill-gotten profits,” rather than explicitly limiting its prayer to restitution, the motion is GRANTED with 20 days leave to amend as to Paragraph 6(b) of the Prayer for Relief. <u>Punitive Damages Allegations and Prayer</u> Defendant Get Buzzed moves to strike portions of Paragraphs 52 and 82 of the FAC as well as Paragraphs 1(e) and 4(d) of the Prayer for Relief for punitive damages. These paragraphs correspond to the first cause
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		of action for fraud & deceit and the fourth cause of action for conversion. Get Buzzed contends that no facts are alleged establishing that any officer, director, or managing agent of Get Buzzed committed, authorized, or ratified the alleged conduct, as required by Civil Code section 3294(b). This contention is not well taken. Defendant Meikle is alleged to be “the founder, CEO, and an owner of BEE THE BUZZ” as well as its President. (FAC ¶¶ 5, 26.) Meikle is further alleged to have personally made false promises, personally emailed Plaintiff a forged medical record, and personally received and refused Plaintiff’s written demand for a refund. (FAC ¶¶ 11, 20, 43, 19, 42, 46, 26.) The motion is DENIED as to the cited punitive damages allegations. Moving Parties to give notice.
115		